

EMPLOYEE CONFIDENTIALITY; NON-DISCLOSURE; NON-SOLICITATION AND NON-COMPETE AGREEMENT

This Confidentiality, Non-Disclosure, Non-solicitation and Non-compete Agreement (hereinafter referred to as the Agreement) is made and entered into on this **6th day of October 2025** by and between **Khalid Akhter** (hereinafter referred to as the Recipient) on the ONE PART. AND M/s GyanSys Infotech Pvt Ltd, a company duly incorporated under the Indian companies Act 1956, and having its registered office address at 11, 12, 13 and 14th Floor, Tower-A, Prestige Shantiniketan Tech Park, Whitefield, Bangalore 560048 duly represented by its Authorized Signatory **Dharmesh Kalaiah** (hereinafter referred to as the **Company**) (the term "**Company**" includes its subsidiaries) on the **OTHER PART**.

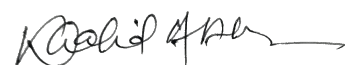
W I T N E S S E T H

WHEREAS, in pursuant to the Recipient being employed by the Company & during the course of the employment, it will be necessary between the Parties to exchange and also the Recipient may come across certain information which will be of a proprietary and confidential in nature.

WHEREAS, the Company possesses competitively valuable Confidential Information regarding its financial condition, private placements of its securities, current products and services, past, present and future software programmes, products and services, research and development, business concepts and strategies and general business operations; and

WHEREAS, the Recipient understands that certain information and data may be provided by the Company from time to time concerning the clients, customers and vendors of Company (hereinafter the "third party Information"), and data, programmes, processes, software of Company on the understanding and condition that such data and information will be protected by Recipient as Confidential Information, and as such will not be divulged to any entity or person.

WHEREAS, Recipient understands and agrees that all past, present and future information and know-how regarding Company business, financial affairs, services, products, ideas, techniques, processes, plans, technology, codes, clients and customers, whether or not in writing, including, without limitation, printed documents, audio or video disks or tapes, and computer disks or tapes, whether machine or user readable and including all Trade Secrets, patent, trademark, copyright and Third party Information (collectively "Confidential Information") will not be disclosed by the Recipient to any person or entity without the specific authorization in writing from the Company.



WHEREAS, the Company has entered into “Employer – Employee” relationship with the Recipient and in connection therewith may need to review or use the either party’s Confidential Information and Confidential Materials (as defined below).

NOW, THEREFORE, in consideration of the promises and covenants contained in this Agreement and the disclosure of Confidential Information and Confidential Materials, the Parties hereby agree as follows:

1. Definition of Confidential Information and Materials

- (a) **“Confidential Information”** shall mean non-public information that disclosed by the Company to the Recipient, either orally or in writing. Confidential Information includes, without limitation, the business plan, any and all offering and disclosure documentation relating to the offer and sale of securities, customer lists and databases, market studies, marketing plans, all financial information including financial analysis, financial projections, designs, formulas, research and development techniques, processes, trade secrets, computer programs, software, unpublished computer code (both source code and object code), database technologies, systems, electronic codes, mask works, inventions, innovations, patents, patent applications (and any identifying number associated therewith), provisional patent applications (and any identifying number associated therewith), discoveries, improvements, data, know-how, formats, test results, research projects, information relating to released or unreleased software or hardware products, the marketing or promotion of any product, business policies or practices, information received from others that the Recipient is obligated to treat as Confidential and all Information or Material that has or could have commercial value or other utility in the business or prospective business. Confidential Information disclosed to Recipient, and/or Recipient’s employees, affiliates, subsidiaries and all related parties of Recipient by the Company are covered by this Agreement.
- (b) **“Confidential Materials”** shall mean all information and data furnished by the Company to Recipient, whether by inspection of tangible objects or in oral, written, graphic or machine-readable form, including, but not limited to audio tapes, video tapes, computer disks, machines, prototypes, designs, specifications, articles of manufacture or drawings, and all tangible materials containing Confidential Information, including without limitation written or printed documents and computer disks or tapes, pen drives whether machine or user readable.



2. Non - Use and Non- Disclosure

- (a) The Recipient shall not disclose any Confidential Information or Confidential Materials, or any part or derivative thereof, to any third parties following the date of its disclosure by the Company to Recipient.
- (b) The Recipient may, however, disclose Confidential Information or Confidential Materials in accordance with judicial or other governmental order, provided that Recipient shall give the Company reasonable written notice prior to such disclosure and shall comply with any applicable protective order or its equivalent.
- (c) The Recipient agrees that it does not intend nor will it, directly or indirectly, export or re-export any Confidential Information or Confidential Materials or any product (or any part thereof), process or service that is the direct product of the Confidential Information or Confidential Materials to any third party or any end- user who either party knows or has reason to know will utilize such information and/or materials in the design, development or production of products and services which are detrimental to the interest of the Company and related to its area of business activity.

3. Maintenance of Confidential Information

- (a) Without limiting the generality of this Agreement, Recipient shall take reasonable security precautions, at least as great as the precautions it takes to protect his or her own most highly confidential information, and in no event less than a reasonable degree of care under the circumstances, to keep confidential the Confidential Information and Confidential Materials.
- (b) The Recipient may disclose Confidential Information and Confidential Materials only to such persons or entities with a bona-fide need to know such Confidential Information or Confidential Materials, but only to the extent necessary to evaluate or carry out a proposed transaction or relationship with the Company and only if such persons or entities are advised of the confidential nature of such Confidential Information and/or Confidential Materials and the terms of this Agreement and are bound by an appropriate written agreement to protect the confidentiality of such Confidential Information and/or Confidential Materials.
- (a) The Recipient shall make no unauthorized copies of the Confidential Information and/or Confidential Materials. The Recipient also agrees to segregate all Confidential Information and Confidential Materials from the confidential information and confidential materials of others in order to prevent commingling.
- (b) The Recipient shall not translate, reverse engineer, decompile, disassemble, modify, change or enhance any software, documentation or other materials disclosed to Recipient without the Disclosing Party's prior written consent.

A handwritten signature in black ink, appearing to read "Kashif Khan", is located at the bottom right of the page.

- (c) The Recipient shall not remove any copyright or proprietary rights notice attached to or included in any Confidential Information and/or Confidential Materials furnished by the Company and shall reproduce such notices on any copies. All copies made by Recipient shall also be considered Confidential Information and/or Confidential Materials.
- (d) The Recipient shall notify the Company immediately upon discovery of any unauthorized use or disclosure of Confidential Information or Confidential Materials, or any other breach of this Agreement by Recipient, and will cooperate with the Company in every reasonable way to help the Company regain possession of the Confidential Information and/or Confidential Materials and prevent any further unauthorized use.
- (e) The Recipient may provide Confidential Information to third parties only upon receipt of prior written approval from the Company, The Recipient shall advise such third party of the existence of this Agreement and require such third party to agree to the terms of this Agreement.

4. No obligation

- (a) The Agreement shall not be construed or interpreted to obligate the Company to disclose all or any Confidential Information.
- (b) The Company makes no representation or warranties whether written or oral statutory, express or implied with respect to the accuracy, efficacy, completeness, capabilities, performance or safety of any materials or information provided under this Agreement.
- (c) The Company shall not be liable for any special, incidental or consequential damages of any nature whatsoever resulting from receipt or use of the information by the Recipient.

5. Return of materials

The Recipient shall return any and all originals, copies, reproductions and summaries of Confidential Information and/or Confidential Materials and all materials utilizing or incorporating any or all of the same at the Company's request. The returning of materials shall not relieve Recipient from compliance with other terms and conditions of this Agreement.

6. Remedies

- (a) The Recipient acknowledges that monetary damages may not be a sufficient remedy for unauthorized disclosure of Confidential Information and/or Confidential Materials and that Recipient agrees that any breach or violation or

A handwritten signature in black ink, appearing to read "Kashif Khan", is located at the bottom right of the page.

intended breach or violation of this Agreement will cause irreparable injury to the Company, entitling the Company to obtain ex-parte injunctive relief (both preliminary and final) in addition to all other legal remedies.

- (b) The Company may visit Recipient's premises, with reasonable prior written notice and during normal business hours, to review Recipient's compliance with the terms of this Agreement.

7. Owner of Confidential Information

All Confidential Information and Confidential Materials are and shall remain the property of the Company. By disclosing Confidential Information and/or Confidential Materials to Recipient, the Company does not grant any express or implied right to Recipient to or under the Company's patents, copyrights, trademarks or trade secret information.

8. Term

- (a) This Agreement is effective as on the date of execution and shall survive and remain in effect until two (2) years from the date of termination of employment contract between the Company and the Recipient.

9. Non-Solicitation and Non-Compete

- (a) The Recipient hereby agrees that he/she shall not solicit for work or provide service or advice or assist others with the opportunity to do the same, any Client of the Company.
- (b) During the period of time during Recipient's employment with the Company and for a period of twenty four (24) months following the termination of that employment, for whatever reason (or without reason) **(the "Non-compete Period")**, Recipient shall not directly or indirectly own any interest in, manage, control, participate in, consult with, render services for, or in any manner engage in any business competing with the businesses of the Company, as such businesses exist or are in process on the date of the termination of Recipient's employment with the Company, within any geographical area in which the Company may engage in such businesses on the date of termination of Recipient's employment with the Company.
- (c) During the Non-compete Period, Recipient shall not directly, or indirectly through another entity,
 - i. induce or attempt to induce any employee of the Company to leave the employ of the Company or in any way interfere with the relationship between the Company and any employee thereof,



- ii. hire any person who was an employee of the Company at the time of termination of the Employment Term or,
- iii. induce or attempt to induce any customer, supplier, licensee, licensor, franchisee or other business relation of the Company to cease doing business with the Company or in any way interfere with the relationship between any such customer, supplier, licensee or business relation and the Company (including, without limitation, making any negative statements or communications about the Company).

10. Governing law

- (a) If either party employs attorneys to enforce any rights arising out of or relating to this Agreement, the prevailing party shall be entitled to recover reasonable attorneys' fees.
- (b) This Agreement shall be construed and governed by the laws of the Republic of India and the courts in Bangalore Urban District, Karnataka State, shall have the exclusive jurisdiction to determine any dispute in relation to or arising from this agreement.

11. Dispute resolution

- (a) If any dispute arises between the Parties under or in relation to this Agreement, it shall first be dealt with in accordance with the following procedure
 - i. A notice of the dispute or difference shall be given by either Party within 10 days of the occurrence or discovery of the matter or issue giving rise to the dispute or difference.
 - ii. The parties shall try to resolve the dispute amicably through mediation. Only if the dispute cannot be resolved by mediation within 30 days it shall be referred to court of competent jurisdiction.
- (b) By agreeing to settle any dispute through litigation, the Parties undertake to abide by and carry out any award promptly and any award shall be final and binding on the Parties. The Parties waive irrevocably their right to any form of appeal, review or recourse to any State, court or other judicial authority, insofar as such waiver may be valid made other than the right under the applicable laws.
- (c) Nothing in this Clause shall affect the right to apply to Court for interim relief in order to prevent the violation of any proprietary interest, or to prevent a breach of obligations which could cause irreparable harm or to protect or preserve a right of action including claiming damages in excess of Rs. 5 lakh per each instance of



breach of Agreement, other rights and remedies it may have from a court of competent jurisdiction

- (d) The Parties obligation to perform the Services shall not be affected by this procedure, or by any other procedure for the resolution of disputes referred to in this Clause.

11. Miscellaneous

- (a) This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof. It shall not be modified except by a written agreement dated subsequent to the date of this Agreement and duly signed by both the Parties.
- (b) Any failure to enforce any provision of this Agreement shall not constitute a waiver thereof or of any other provision hereof.

IN WITNESS WHEREOF, the Parties have entered into this Agreement the day and year first above written.

For and on behalf of Company

For and on behalf of Recipient



Name: Dharmesh Kalaiah
Title: Sr. Manager - Human Resources
Date: 06 October 2025

Name: Khalid Akhter
Title: Principal Consultant
Date: 06 October 2025